Montgomery County District Court

Cause No. 2024-CV-0013

Jennifer Boyd, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Jennifer Boyd

Date:	August 22, 2024
Location:	Offices of Villa & Dawson LLP
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Jeffrey Hayes, Villa & Dawson LLP

Q: Please state your full name for the record.

A: I'd rather just say I'm the plaintiff in this case. I'd prefer not to give my full name in this setting, but I can answer the questions about the accident.

Q: Understood. Let's start with the accident itself. Where were you when it happened?

A: I was stopped at a red light on a main road in Baytown, Texas, waiting to turn left.

Q: What was the traffic like around you?

A: Pretty typical for that time of day. There were a few cars ahead of me and one behind me, close behind, and I remember glancing in my mirror.

Q: Did you see the vehicle behind you before the impact?

A: Only for a second. I saw headlights getting bigger, and then there was a hard jolt from behind. My head snapped back and then forward, and my right shoulder hit the door frame.

Q: Did you feel pain right away?

A: Not a lot right at first. I felt tight and sore in the neck and shoulder, and by the time I got out to talk to the other driver, the shoulder was really aching.

Q: Did you go to a doctor or an emergency room that day?

A: I went to an urgent care clinic later that evening. They took X-rays and told me to rest and take anti-inflammatory medication.

Q: Did you follow up with other proviedrs after that?

A: Yes. My primary care doctor referred me to a physical therapist, and I started going two or three times a week. I also had an MRI on the shoulder, and an orthopedic specialist reviewed the results with me.

Q: How would you describe your treatment since then?

A: Some good days and some bad. The therapy hepls with the range of motion, but I still can't lift anything heavy with my right arm without pain.

Q: How has the injury affected your daily life?

A: A lot. I'm right-handed, so simple things like brushing my hair, reaching into a high cabinet, or carrying groceries are hard. I had to stop going to my weekend recreational softball league, and I've missed some shifts at work because of appointments and pain.

Q: Have you had any prior injuries to that same shoulder?

A: No, not to that shoulder. I had a sprained ankle years ago, but nothing involving my right shoulder.

Q: Thank you. Is there anything else you'd like to add about how the accident has affected you?

A: Just that I used to be fairly active and independent, and now I depend on my family more than I'd like. I'm hopeful that continued therapy will help, but I'm not sure yet how much I'll recover.